

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Purchased:

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DEIVIS PICHARDO, which the police misspelled
DELVIS PICHARDO,

Plaintiff designates Kings County as
the place of trial

Plaintiff,

The basis of the venue is where the
tort arose.

-against-

SUMMONS

THE CITY OF NEW YORK, P.O. TROY ANN SAFI
OF THE 84 PCT., SHIELD #02307, TAX REG.
#929106, AND ALL OTHER OFFICERS INVOLVED
IN THE ARREST UNDER DOCKET NOS.
2015SK076112, 2015SK076114 and 2015SK076140,
N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON SEPTEMBER 18,
2015 AND NO OTHER,

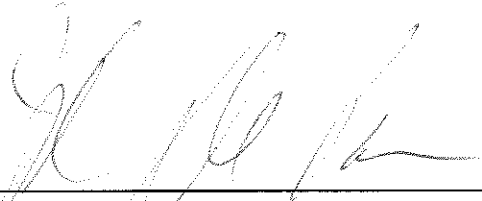
Plaintiff resides at
DEIVIS PICHARDO
85 Strong Street
Bronx, NY 10468

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a0 copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete is this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 3, 2016



JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff
42-40 Bell Boulevard, Suite 500
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. TROY ANN SAFI OF THE 84 PCT.
SHIELD #02307, TAX REG. #929106**

301 Gold Street
Brooklyn, New York 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
DEIVIS PICHARDO, which the police misspelled
DELVIS PICHARDO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. TROY ANN SAFI
OF THE 84 PCT., SHIELD #02307, TAX REG.
#929106, AND ALL OTHER OFFICERS INVOLVED
IN THE ARREST UNDER DOCKET NOS.
2015SK076112, 2015SK076114 and 2015SK076140,
N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON SEPTEMBER 18,
2015 AND NO OTHER,

Defendants.

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DEIVIS PICHARDO, which the police misspelled DELVIS PICHARDO, by his
attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, DEIVIS PICHARDO, which the police misspelled DELVIS PICHARDO, was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 10th day of December, 2015 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, CITY OF NEW YORK,

by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **DEIVIS PICHARDO**, which the police misspelled **DELVIS PICHARDO**, has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **P.O. TROY ANN SAFI OF THE 84 PCT., SHIELD #02307, TAX REG. #929106, AND ALL OTHER OFFICERS INVOLVED IN THE ARREST UNDER DOCKET NOS. 2015SK076112, 2015SK076114 and 2015SK076140, N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON SEPTEMBER 18, 2015 AND NO OTHER**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

7. On or about September 18, 2015, at approximately 10:00 A.M. in the vicinity of 365 Jay Street, County of Kings, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **DEIVIS PICHARDO**, which the police misspelled **DELVIS PICHARDO**, in an excessive manner about his person, causing him physical pain and mental suffering, including, but not limited to, being placed in handcuffs too tight, and being slammed to the ground, and having a boot placed on his neck causing neck, back, leg and knee pain. The injuries sustained by the Plaintiff caused Plaintiff to seek medical treatment, and subsequent physical therapy. The Plaintiff was falsely arrested, and unlawfully imprisoned. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about September 18, 2015, at approximately 10:00 A.M. in the vicinity of 365 Jay Street, County of Kings, State of New York, the Defendants, jointly and severally did place Plaintiff, **DEIVIS PICHARDO**, which the police misspelled **DELVIS PICHARDO**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in

imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about September 18, 2015, at approximately 10:00 A.M. in the vicinity of 365 Jay Street, County of Kings, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Kings and there charged him with the crimes on Docket Nos. 2015SK076112, 2015SX76114, and 2015SX76140. The Plaintiff was thereafter held in custody over the course of approximately one and one half (1.5) hours until he was released with three (3) summonses. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about September 18, 2015, at approximately 10:00 A.M. in the vicinity of 365 Jay Street, County of Kings, State of New York, the Defendants, jointly

and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody. The Plaintiff was thereafter held in custody over the course of approximately one and one half (1.5) hours before he was released with three (3) summonses. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants **P.O. TROY ANN SAFI OF THE 84 PCT., SHIELD #02307, TAX REG. #929106, AND ALL OTHER OFFICERS INVOLVED IN THE ARREST UNDER DOCKET NOS. 2015SK076112, 2015SK076114 and 2015SK076140, N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON SEPTEMBER 18, 2015 AND NO OTHER,** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff **DEIVIS PICHARDO**, which the police misspelled **DELVIS PICHARDO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
19. On or about September 18, 2015, the Defendants, armed police, while effectuating the seizure of the Plaintiff **DEIVIS PICHARDO**, which the police misspelled **DELVIS PICHARDO** , did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and unlawfully imprisoned without the Defendants possessing probable cause to do so.
20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;

- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.

21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.
23. It should be noted that Police Officer named defendant Troy Ann Safi did issue multiple violations to the plaintiff for disorderly conduct which were all dismissed on or about July 11, 2016. Police Officer Troy Ann Safi was the one who initially confronted the plaintiff at the scene of the incident. The officers named as John/Jane Doe I-V where one was a plainclothes officer who when plaintiff was in his truck opened the door grabbed plaintiff by the ankle and assisted by approximately four (4) other officers named herein as John/Jane Doe II-V with Officer Safi in close proximity acting in concert threw plaintiff on the ground used excessive force with these officers whose names are not known at this time where one of these officers put a boot on the back of his neck. Further, the handcuffs were placed on too tight causing pain to the plaintiff.

AS AND FOR A SIXTH CAUSE OF ACTION

24. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "23" with full force and effect as though set forth at length herein.
25. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
26. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
27. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.

2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
28. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

29. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "28" as it set forth at length herein.
30. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the

jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

dated: Bayside, New York
December 18, 2015

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC



BY: JOHN R. DEPAOLA
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Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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DEIVIS PICHARDO, which the police misspelled
DELVIS PICHARDO,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, P.O. TROY ANN SAFI
OF THE 84 PCT., SHIELD #02307, TAX REG.
#929106, AND ALL OTHER OFFICERS INVOLVED
IN THE ARREST UNDER DOCKET NOS.
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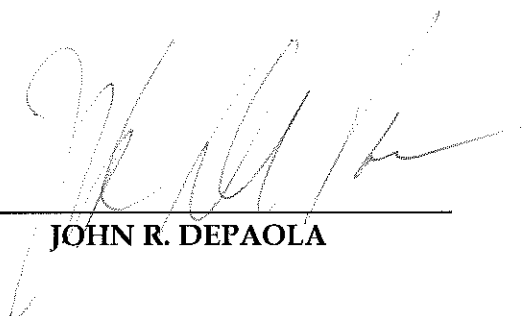
Defendants.

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I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 3, 2016



JOHN R. DEPAOLA